

SENATE No. 504

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enforcing accessibility for voters with disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Cynthia Stone Creem</i>	<i>Norfolk and Middlesex</i>	
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/22/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/28/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/28/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>1/30/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>3/24/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>7/22/2025</i>

SENATE No. 504

By Ms. Creem, a petition (accompanied by bill, Senate, No. 504) of Cynthia Stone Creem, Carmine Lawrence Gentile, James B. Eldridge, Joanne M. Comerford and other members of the General Court for legislation to enforce accessibility for voters with disabilities by requiring an agent of the state secretary to inspect, at least once every four years, each polling place. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enforcing accessibility for voters with disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 54 of the General Laws is hereby amended by inserting after section 24 the
2 following section:-

3 Section 24A. To ensure compliance with federal and state laws concerning accessibility
4 for voters with disabilities including the state secretary's polling place accessibility regulations,
5 an agent of the state secretary shall inspect, at least once every four years, each polling place
6 most recently designated under section 24 and each early voting site most recently designated
7 under subsection (b) of section 25B. The inspecting agent shall promptly and specifically report
8 in writing to the state secretary and the city or town clerk every failure to comply with state and
9 federal accessibility laws, and the responsible officials of the city or town shall take immediate
10 action to ensure access for voters with disabilities and within 5 days submit to the state secretary
11 a written plan to comply. If the city or town fails to take such immediate action or to submit a

12 written plan to provide access to voters with disabilities, the state secretary may order the city or
13 town to comply with the law. Not later than December 31 each year, the state secretary shall
14 report in writing to the clerks of the senate and house of representatives on all activities under
15 this section. The attorney general may bring a civil action in the superior court to enforce
16 compliance with those accessibility laws, with a written plan, or with the state secretary's order.
17 The actions provided in this section shall not limit the availability of judicial remedies to any
18 person, official, commission or board.